

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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**SHIRLEY SAENZ, individually and for her minor child
"F.J.S-R."**

Index No.: 506455/2016

Plaintiffs,

-against-

CITY OF NEW YORK, Detective DONNAMARRIE MAZZA,
Detective TODD NAGROWSKI, Detective JOHN TAYLOR,
Detective CHRISTOPHER KAROLKOWSKI, P.O. "JOHN"
ROBERTS, Lieutenant JAIME ORTIZ, Detective DEBORAH R.
HAWKINS, ADMINISTRATION FOR CHILDREN SERVICES,
JOHN WALKER, THOMAS DUNBAR, DUWAYNE BOYCE,
DENISE DEGANNES, PATRICK THOMAS, AJA PANIAGUA **VERIFIED AMENDED**
ANGELA HUGEE, MORRIS HENEY, JOSEPH KWAME **COMPLAINT**
ASAFU-ADJEL, VALENTINE DIKE, RAFAEL FELICIANO,
and **ANDREA AVENT**, all in their individual and official capacities,
and "**JOHN DOE ACS AGENTS 1-10** are meant to be ACS agents
whose names are Unknown, in their individual and official capacities
Defendants

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Plaintiffs, through their attorney, DAVIS NDANUSA IKHLAS & SALEEM as and for their
complaint against the defendants herein allege:

I. PRELIMINARY STATEMENT

1. This is a civil rights action brought by Plaintiffs Shirley Saenz individually and on behalf of infant Plaintiff F.J.S-R seeking damages and redress for Defendants' violation, under color of state law or action, or the rights of the plaintiffs secured by the Fourth Amendment of the United States Constitution and/or the laws and Constitution of The State of New York. In addition this action also seeks, on behalf of the custodial parent, to redress the ongoing policy of paroling custody to non-custodial parents, absent an emergency situation, court order or warrant, when the custodial parent is already challenging custody in Family Court.

II. JURISDICTION AND VENUE

2. Plaintiff has fully complied with the administrative prerequisites to the filing of this action under state law by timely serving and filing a notice of Claim in compliance with General Municipal Law § 50.
3. Defendant City did demanded the statutory 50-h hearing pursuant General Municipal Law § 50(e) and said hearing was held on February 10, 2016. At least thirty days have elapsed since the service of the notice of claim and since the 50-H hearing and adjustment or payment thereof has been neglected or refused.
4. This action was commenced within one year and ninety days after the happening of the events upon which these claims arise.

III. PARTIES

5. Plaintiff **SHIRLEY SAENZ** (hereinafter “mother” or “Plaintiff Saenz”) is the mother of the infant F.J.S-R. and at all times mentioned herein is a resident of the Borough of Brooklyn, County of Kings, City and State of New York.
6. Plaintiff F.J.S-R is the minor child of Shirley Saenz on whose behalf the mother files this action and at all times herein is a resident of the Borough of Kings, County of New York, City and State of New York.
7. At all times hereinafter mentioned, defendant **CITY OF NEW YORK** (hereinafter “**CITY**”), was and still is a municipal corporation existing under and by virtue of the laws of the State of New York.
8. At all times hereinafter mentioned, defendant, **CITY**, employed persons as police officers

and said persons were so employed as police officers by and through the **NYPD**.

9. Defendants **CITY** is responsible for the training and supervision of police personnel and were also responsible for enforcing the regulations and policies of the New York City Police Department and for ensuring that New York City Police Department employees obey, employ and implement regulations and policies, including policies regarding interference with ongoing custody proceedings and the detention of children whose caretakers have been arrested.
10. At all times hereinafter mentioned, defendants, their agents, assistants and employees acted pursuant to the policies, regulations or decisions officially adopted or promulgated by agents of defendants, whose acts may fairly be said to represent official policy or governmental custom of the defendant **CITY**.
11. That upon information and belief Defendant Detective **DONNAMARIE MAZZA** (hereinafter "**MAZZA**") was employed by **CITY** as an NYPD officer in June of 2010 as a Detective.
12. That upon information and belief Defendant Detective **CHRISTOPHER KAROLKOWSKI** (hereinafter "**KAROLKOWSKI**") was employed by **CITY** as an NYPD officer in June of 2010 as a Detective.
13. That upon information and belief Defendant **TODD** (hereinafter "**NAGROWSKI**") was employed by **CITY** as an NYPD officer in June of 2010 as a Detective at the 72nd precinct.
14. That upon information and belief Defendant **JOHN TAYLOR** (hereinafter "**TAYLOR**") was employed by **CITY** as an NYPD officer at BCAC in June of 2010 as a detective.
15. That upon information and belief Defendant "**JOHN**" **ROBERTS** (hereinafter "**ROBERTS**") was employed by **CITY** as an NYPD in June of 2010 as a Police Officer.

16. That upon information and belief Defendant **JAIME ORTIZ** (hereinafter "**ORTIZ**") was employed by **CITY** as an NYPD in June of 2010 as a Lieutenant.
17. That upon information and belief Defendant **DEBORAH HAWKINS** (hereinafter "**HAWKINS**") was employed at all times by the **CITY** as an NYPD in June of 2010 as a Detective.
18. That at all times hereinafter mentioned, defendant **ADMINISTRATION FOR CHILD SERVICES** (hereinafter "**ACS**") is authorized by New York State Law to investigate complaints of child abuse, maltreatment and neglect and to offer rehabilitative and preventive services to both children and parent.
19. Upon information and belief, Defendant **JOHN WALKER** (hereinafter "**WALKER**") was employed by ACS from June 2009 until the present as a Specialist.
20. Upon information and belief, Defendant **THOMAS DUNBAR** (hereinafter "**WALKER**") was employed by ACS from June 2009 until the present as a Manager.
21. Upon information and belief, Defendant **DUWAYNE BOYCE** (hereinafter "**BOYCE**") was employed by ACS from June 2009 until the present as a Specialist Supervisor.
22. Upon information and belief, Defendant **DENISE DEGANNES** (hereinafter "**DEGANNES**") was employed by ACS from June 2010 until the present as a supervisor.
23. Upon information and belief, Defendant **PATRICK THOMAS** (hereinafter "**THOMAS**") was employed by ACS from June 2009 until the present as a supervisor.
24. Upon information and belief, Defendant **AJA PANIAGUA** (hereinafter "**PANIAGUA**") was employed by ACS from June 2009 until the present as a supervisor.
25. Upon information and belief, Defendant **ANGELA HUGEE** (hereinafter "**HUGEE**") was

employed by ACS from June 2009 until the present as a supervisor.

26. Upon information and belief, Defendant **MORRIS HENEY** (hereinafter “**HENEY**”) was employed by ACS from June 2009 until the present as a supervisor
27. Upon information and belief, Defendant **JOSEPH KWAME ASAFU-ADJEI** (hereinafter “**ASAFU-ADJEI**”) was employed by ACS from June 2009 until the present as a supervisor.
28. Upon information and belief, Defendant **VALENTINE DIKE** (hereinafter “**DIKE**”) was employed by ACS from June 2009 until the present as a supervisor.
29. Upon information and belief, Defendant **RAFAEL FELICIANO** (hereinafter “**FELICIANO**”) was employed by ACS from June 2009 until the present as a supervisor.
30. Upon information and belief, Defendant **ADREA AVENT** (hereinafter “**AVENT**”) was employed by ACS from September 2010 until the present as a Caseworker.
31. That upon information and belief, defendants **JOHN DOE ACS AGENTS** were and still are employed by the defendant **CITY** as agents of defendant **ACS**.

IV. FACTS

32. That Ms. Saenz raised and cared for her son, F.J.S-R., from the date of his birth on October 5, 2008 and has been his primary caretaker and custodian until June 30, 2010, when ACS, with assistance of defendant police officers, unlawfully removed Plaintiff F.J.S-R from her care and custody.
33. That on or about June 16, 2009 Plaintiff Saenz was awarded temporary custody of F.J.S-R. and a temporary order was also issued giving F.J.S.-R’s father (hereinafter “The Father”) visitations for four hours a week.
34. That by June 18, 2009 ACS was already involved in Plaintiff and The Father’s Family Court

proceeding, evidenced by the Court Ordered Inspection (“COI”) ACS conducted, and that during said inspection Plaintiff Saenz reported her concerns to ACS that The Father was returning the child in poor health.

35. That the COI itself was ordered by Henry James Joseph, Family Court Judge L. Krauss’ Court Attorney, only against the mother.
36. That on or about June 25, 2009 Plaintiff Saenz and the Father entered into a visitation stipulation whereby the Father would have visitation on Saturdays from 10 am to 2pm.
37. That starting in or about the summer of 2009 to on or about February of 2011 and even beyond, The Father would return F.J.S-R from visits in poor condition, sometimes with red localized swelling to the child’s anal area.
38. That on or about September 1, 2009, Defendant ACS did observe the child undressed as part of an investigation into allegations from The Father against Plaintiff Saenz.
39. That on or about September 10, 2009, ACS took nude photographs of the child in order to document his condition, including taking specific pictures of the child’s private area.
40. That thereafter, Plaintiff Saenz, at her attorney’s advise, also began documenting the child’s conditions by taking pictures of such things as his anal swelling, several of which were brought to ACS’s attention.
41. That on or about September 12, 2009 Ms. Karen Thompson, LMSW of Lutheran Hospital observed the child in poor condition after being returned from a visit and that Ms. Thompson reported The Father to ACS. Defendant ACS failed or neglected to investigate this complaint.
42. That Dr. Fahad Kahn, a pediatrician from Lutheran Hospital also became concerned and even suggested that the child’s visits be suspended until an investigation was completed.

43. That in or about December 24, 2009 The Father's visits were extended to Fridays at 5:30 pm to Saturdays at 6pm and that it was during these overnight visits that the mother first noticed the appearance of anal swelling and redness around the child's anal area.
44. That following a December 2009 advice of her then attorney, on or about June 4, 2010, Plaintiff Saenz began to use money orders and/or newspapers to "timestamp" dates and times when her child was in good physical condition before visiting with The Father.
45. That on or about June 5, 2010, immediately after the child was returned from a visit with the Father, Plaintiff reported the child's anal swelling to Dr. Shaikh Hasan, the child's pediatrician, who advised her to take the one year old child to the emergency room. Plaintiff took pictures on this day of the anal swelling.
46. That at Dr. Hassan's suggestion, Plaintiff took the child to Methodist Hospital and while there Dr. Fairbrother called Defendant ACS and reported the condition of the child to the Defendant Agency as against the Father.
47. That on June 11, 2010, Plaintiff Saenz, armed with the before and after pictures of the child's condition, obtained an order from Judge Tanya Kennedy suspending The Father's visitations. Disturbed by the nature of what was depicted in the photographs, Judge Kennedy's order noted that the pictures "do not look like a diaper rash."
48. That on or about June 15, 2010, at the advice of her counsel, Plaintiff Saenz went to the 72nd Precinct to report a possible molestation charge against The Father.
49. That at the 72nd precinct, Plaintiff Saenz spoke with Lieutenant Ortiz and presented him with a copies of Judge Kennedy's aforementioned order, a letter from Dr. Hasan in which Hasan noted that "may be, the child is being molested" as well as the same pictures she had presented to

Judge Kennedy.

50. That Lieutenant Ortiz made copies of the items with which Plaintiff Saenz presented and then directed her to file her complaint with BCAC. Ortiz refused to allow Saenz to make out a report.
51. That on June 16, 2010, Dr. Hasan called the State Central Registry (hereinafter "SCR") and filed a complaint against the Father.
52. That on or about June 16, 2010 Plaintiff Saenz went to the BCAC, believed to be a companion organization of defendant ACS, to file what she believed would be a criminal complaint against The Father.
53. That some of the documents with which Saenz came to file the complaint included the Kennedy order suspending the Father's visits, Dr. Hasan's notes and pictures of the injured child.
54. That while at BCAC, Plaintiff Saenz met with Detective Hawkins, tried to file a report with Hawkins, but that Hawkins berated her and refused to file said report and told Saenz to await a phone call in a few weeks. Also at BCAC was Defendant Dunbar who gave some ACS documents to Hawkins.
55. That instead of filing the report on Saenz' behalf Hawkins, without just cause, filed a report against Plaintiff Saenz with SCR (claiming neglect) and closed the potential case against the Father.
56. That in the Hawkins report, she names Father as the complainant against Saenz despite the Father never having actually filed a report on that day against Saenz.
57. That in addition, Defendant Hawkins called and threatened Dr. Hasan, a mandated reporter, with arrest if he should file any further complaints against the Father.
58. That contrary to Hawkins SCR complaint against Plaintiff Saenz for failing to care for the

child's condition, Dr. Melissa Dhundale had examined the child on the same day (June 16, 2010) and found that "there was no rash and the rest of the physical exam was with-in normal limits."

59. That upon information and belief, with ACS' influence, on June 17, 2010, Judge Kraus reversed Kennedy's suspension of the visits and reinstated the father's visit.
60. That on June 17, 2010, contrary to the position Dr. Hassan has consistently held, Defendant Dike wrote a report that Dr. Hassan blamed the mother for the child's poor condition.
61. That however, in a June 18, 2010 letter, Dr. Shaikh Hasan noted in regard to the condition of the child on June 5, 2010 that "in my 20 yrs of experience, I have never seen such inflammation and redness and swelling at the anal area with the diaper rash."
62. That thereafter, on or about June 18, 2010 Defendant Walker appeared at Plaintiff Saenz's residence with police escort from the 72nd precinct looking for Plaintiff Saenz. On this date, Defendant Walker did tell Jaime, the superintendent at Plaintiff's residence, that the Plaintiff should have her attorney present when Walker returns to her home. It is believed that Defendant Walker came to Saenz's home to remove the subject one year old child from her care without having just cause to do so.
63. That on or about June 18, 2010 the child was examined by Dr. Hassan and the Doctor found no evidence of anal swelling. Later that day, the child was dropped off to The Father for his visits.
64. That on or about June 19, 2010 The Father did return the child at the 68th precinct to Plaintiff Saenz again with severe anal swelling and redness. Officers at the 68th precinct refused on that day, to observe or record Plaintiff's complaint about the child's condition.
65. That on June 24, 2010 Plaintiff Saenz filed a phone complaint with the Inspector General's

Office against ACS, Lieutenant Ortiz, the Detective of the 72nd precinct and John Walker for refusing to investigate her complaints of potential abuse.

66. That further on or about June 24, 2010, Defendant Walker and Paniagua came to Plaintiff Saenz's home, again with police escort from the 72nd precinct. It is believed that Walker came to Plaintiff's home for the sole purpose of removing her child from her custody without a Family Court order/warrant or justification to do so. Upon information and belief, Walker had already contacted The Father and prepared The Father to take custody should Walker succeed in removing the child from Plaintiff's custody.

67. That on or about June 25, 2010 Defendant John Walker was present at the drop-off / pick-up of the child. That upon information and belief, Defendant Walker accompanied the Father to Father's house, whereupon Walker examined F.J.S-R's anal area (which included taking of pictures of the child) and found no evidence of anal rash at that time.

68. That also on June 25, 2010, while still at Dr. Hasan's office and prior to the Father's pick-up of the infant plaintiff, Plaintiff Saenz took pictures of the child to document his healthy condition.

69. That prior to seeing The Father on or about June 25, 2010, the child had been with the mother for an entire week.

70. That on or about June 26, 2010 Plaintiff Saenz went to a local Duane Reade to develop the June 25, 2010 pictures but was unable to retrieve the pictures from the machine because it malfunctioned during the process of development.

71. That on or about June 29, 2010 Plaintiff Saenz did call the NYPD's Internal Affairs Bureau ("IAB") to file a complaint against Hawkins, Defendants Ortiz, ACS and the Detective Squad of

the 72nd precinct for failure to take action.

THE ARREST

72. That upon information and belief, Defendants Nagrowski, Taylor, and other police officers whose names are currently unknown obtained copies of the photos Plaintiff left at Duane Reade.

73. That on or about June 29, 2010, on information and belief, the basis of which is ACS notes, Defendant ACS went to the Brooklyn District Attorney's Office for assistance in locating Plaintiff Saenz. That at the direction of Raymond Ferrari, Deputy Chief of the NYPD at the time, Major Case Squad was ordered to the 72nd precinct to help located Plaintiff Saenz.

74. That at no time did ACS indicate in its notes that ACS was seeking to located Plaintiff Saenz because of a belief that the minor child had been abducted.

75. That nonetheless, upon information and belief, Defendant Nagrowski and other police officer defendants and unknown officers launched a City wide search for Plaintiff Saenz based on a claim that Plaintiff Saenz and her son had been kidnapped.

76. That on or about June 30, 2010, in furtherance of the purported kidnapping probe, Defendant officers kicked down Plaintiff Saenz attorney's home door in search of Plaintiff and her son. Plaintiff Saenz's attorney at the time was Farrel Donald.

77. That also on June 30, 2010 Defendants Taylor, Mazza, Karolkowski, and Nagrowski and other defendant officers whose names are unknown did go Plaintiff Saenz's residence, purportedly in furtherance of the kidnapping investigation.

78. That, in fact, Defendant Taylor had been at the premises the previous day when Plaintiff Saenz was not around and was therefore unable to effectuate the illegal removal alleged herein.

79. That on the June 30, 2010 visit to Plaintiff's home, without consent to do so, Defendant

Karolkowski did enter onto Plaintiff's residence, after preventing Plaintiff from closing the door to keep him out.

80. That at Plaintiff's residence, said police officers informed Plaintiff Saenz that they believed Plaintiff Saenz and her son had been kidnapped and then ordered Plaintiff to come with them to the 72nd Precinct.
81. That perplexed and alarmed at the thought that she as a victim of kidnapping and was then being compelled to go with officers to the precinct, Plaintiff Saenz called the 72nd Precinct to verify the reason for the officers being at her home as well as the officer's identities.
82. That Plaintiff Saenz spoke with a Captain Fitzgerald of the 72nd precinct who advised Plaintiff that she could refuse to accompany the officers to the precinct.
83. That Plaintiff Saenz then refused to go with the officers to the precinct and advised the officers that she and her son, who was with her at that time, had not been kidnapped and were not in danger.
84. That at this point, Defendant Mazza and Karolkowski threatened Plaintiff Saenz with the prospect of losing her son, by reporting her to ACS, if Plaintiff Saenz refused to go with Defendant police officers to the precinct.
85. That under the threat of losing her child, Plaintiff Saenz did accompany the police officers to the 72nd precinct.
86. That Plaintiff herein alleges that the "kidnapping" investigation was simply a ruse to get Plaintiff to come with officers to the precinct in order to facilitate the unlawful removal of her son from her custody. When Plaintiff resisted, she was threatened with the loss of her son's custody, which eventually happened anyway. Plaintiff Saenz was accompanied by her roommate

Isabel Romero to the precinct.

87. That when Plaintiff Saenz and Romero arrived at the precinct, they saw The Father, the Father's mother, the Father's attorney, and Defendant Walker at the precinct.
88. That at the 72nd precinct, Plaintiffs were detained and questioned without the assistance of counsel.
89. That at the 72nd precinct, Plaintiffs were detained and questioned without the assistance of counsel.
90. That the Father and Father's attorney were present at the precinct because it had already been pre-determined that the child would be paroled to The Father even before Plaintiff Saenz was placed under arrest.
91. That while at the precinct, Plaintiff Saenz's attorney, the aforementioned Farrel Donald, did appear at the precinct demanding to see his client and that Defendant Nagrowski and Detective Spencer did prevent said attorney from speaking with his clients or learning anything about the reason for their arrest or the impending change in custody. The aforementioned attorney was representing Plaintiff Saenz in the ongoing family court action at that time.
92. That while at the precinct, Plaintiff Saenz observed Defendant Officer(s) with a file bearing Saenz's name and contained papers that were from the Family Court Documents.
93. That non-party Eli Samuel, a friend of Saenz who was detained along with Saenz, observed one officer with a copy of an affidavit submitted in Family Court against Plaintiff Saenz as well as a picture of Samuel that must have been printed from Samuel's website.
94. That also while at the precinct, Defendant officer(s) questioned Saenz about the Family Court proceeding and warned Saenz that she was not to have taken pictures of her son.

95. That Plaintiff Saenz explained to said police officer that she took the pictures in order to protect her son, as permitted under Social Services Law §§, 415 and 416 to document possible abuse of her infant son.
96. That Defendant officer(s) obtained all the aforementioned Family Court documents and information from Defendant ACS.
97. That also on or about July 1, 2010 Plaintiff Saenz was placed under arrest and charged with endangering the welfare of a minor in connection with the taking of the aforementioned June 25, 2010 pictures.
98. That it is alleged herein that officer Nagrowski or whichever officer initially determined that Plaintiffs endangered the welfare of a child did so in order to effectuate and assist in the illegal removal of the child the one year old minor from his mother's custody.
99. That upon information and belief **Defendant Ortiz**, to whom Plaintiff Saenz had previously presented the aforementioned June 5, 2010 pictures and Judge Kennedy's order, authorized Plaintiffs' arrest and/or detention for endangering the welfare of a child based on the taking on the June 25, 2010 pictures.
100. That several hours after her arrest, Plaintiff Saenz was transported to the Red Hook Community Court, where she was charged with endangering the welfare of a child but was then released, never seeing a Judge, once the District Attorney's office "Declined to Prosecute", citing that "defendants' actions are not criminal in nature."
101. That at some point prior to Plaintiff's arrest, defendant **ACS** did conspire with the defendant NYPD officers to remove the child from Plaintiff Saenz's custody and give the child to The Father. This allegation is supported by the "manhunt" for a kidnapping that never happened, and

that soon after Plaintiff Saenz was located and detained, custody of her son was changed to the Father.

102. That while at the precinct, officers refused to allow Plaintiff Saenz's roommate Isabelle Romero to take custody of the child. Rather, Defendant Taylor ordered Romero to leave the child with police officers and to leave the precinct, all in furtherance of the conspiracy alleged herein.

103. That Defendant police officers ordered non-party Romero to leave the child with police officers in order to bring about the unlawful paroling of the child to The Father.

104. That ACS' reasons for the alleged "emergency" removal of the child from the mother's custody is that "[m]other allowed child's diaper rash to continue more than 10 days without seeking medical attention. In addition, mother reportedly took naked pictures of child's rash and sought to accuse child's father of sex abuse."

105. That to the contrary, just five days prior to June 30, 2010, as indicated above, John Walker himself took pictures of the child at Father's home and that Walker noted that the child was in good condition and exhibited no signs of a diaper rash.

106. That likewise, Plaintiff Saenz also took pictures of the child at the Doctor's office, said pictures being the catalyst for the purported kidnapping investigation, in order to documents his good health on said date.

107. That likewise, Plaintiff Saenz also took pictures of the child at the Doctor's office, said pictures being the catalyst for the purported kidnapping investigation, in order to documents his good health on said date.

108. That the above mentioned reason for the emergency removal was fabricated in order to

facilitate the unlawful removal of the infant child from his mother.

109. That on or about July 1, 2010, after the child was removed from the mother's custody, said officers of the NYPD took the child to the Brooklyn Hospital for care. The Brooklyn Hospital Center records noted that the child was in good condition, that ACS was closing the case and, that the child was to be returned to the mother.
110. That despite knowledge of Brooklyn Hospital's directive that the child should be returned to the mother, Defendant Roberts signed documents that instead turned the child over to the custody of ACS.
111. That, on information and belief, Defendant Robert's act of turning the child over to ACS employees was done with knowledge of the ongoing conspiracy to wrongfully parole the child to the father and deprive the mother of the company of her child.
112. That after Plaintiff Saenz's was released from custody, July 1, 2010 she did call Defendant Nagrowski to ask about the whereabouts of her child at which point Nagrowski told her that a hearing was being held later on that same day at which the child was to be legally transferred to the father's custody.
113. That Defendant Nagrowski refused to give any more information to Plaintiff Saenz about the time of the hearing.
114. That Nagrowski refused to give the necessary information in order to ensure the completion of the conspiracy.'
115. That also on July 1, 2010, Defendant Asafu Adjei reached out to the Brooklyn District Attorney's Office, on information and belief, for help on confirming the illegal removal.
116. That at all times herein ACS and defendant police officers knew when Plaintiff Saenz was

released from detention and never advised her of the 1027 hearing at which the minor child was transferred to the father's custody.

117. That Plaintiff Saenz was never advised of her right under the law.

118. That notwithstanding the fact that Saenz was never given an opportunity to be heard before 1027 hearing or at any other meeting in which the fate of her son would be determined, Defendant Hugee sent a letter to Saenz thanking Saenz for attending a child safety conference to which Saenz never attended as Saenz was never given notice of it.

119. That Defendant Heney, as legal case planner, negligently advised ACS agents to continue the process of removing the child from the mother's custody despite evidence showing that the child should have been returned to the mother.

120. That Defendant Feliciano negligently permitted the child to be placed with the father despite evidence showing that the child should have been returned to the mother.

121. That in furtherance of the conspiracy to remove the child from Plaintiff Saenz's custody, Defendant ACS filed a neglect petition against the mother in Kings County Family Court on July 2, 2010. The mother was never served with notice of the petition before the first court appearance.

122. That, on information and belief, the basis of which is review of ACS notes, ACS action as described above, including filing the petition, were motivated by ACS' animus toward Plaintiff's alleged religion and alleged religious association with non-party Eli Samuel.

123. That in addition, Defendants' actions were motivated by an animus toward Plaintiff Saenz's exercise of her right as a mother to pursue legal actions to protect her minor son.

124. That as a result of the petition, Plaintiff Saenz had been allowed only supervised visits with

the child.

125. That at numerous supervised visits Defendant **ACS** would bring the child to the mother's visits in poor health, which at times would include exhibiting the same anal swelling complain of above.
126. That since the child was removed from the mother's care, **ACS** and **ACS** individual defendants named herein continued to engage in acts that would further the conspiracy and alienate the child from his mother's care.
127. That as an example, **ACS** had alleged that the mother was psychologically unstable and that said mental state formed the basis for removing the child from the mother's care. When the court appointed psychologist found her to be stable and well able to care for her child, **ACS** refused to petition the court for the return of the child to the mother's care. Rather, **ACS** demanded a second evaluation.
128. That **ACS** has failed to appear at more than 38 scheduled visitations between the mother and her child without good cause. Said failures to appear for visits continue to date and harm the mother's ability to bond with her child.
129. In another example, Defendant **AVENT** submitted a sworn affidavit in which she falsely claimed that Plaintiff Saenz assaulted her in the presence of the child when she said, "[t]he respondent then purposefully bumped into me as I was trying to speak with the nurse. I filed a complaint with the hospital security, because I felt that she purposefully assaulted me." Defendant Avent's claim resulted in the mother losing all visitations with her child for almost six months.
130. That in connection with a Supreme Court Kings County Habeas Corpus petition, Plaintiff

Saenz submitted the affidavit of Keita Aboubacar, the security guard who witnessed the alleged incident during which Plaintiff Saenz purportedly assaulted Defendant **AVENT**. In his affidavit, Mr. Aboubacar disavowed Avent's claims of assault and added that ACS declined to even view the video footage that captured the entire incident.

131. That it was only after the Mr. Aboubacar affidavit was submitted in the aforementioned Habeas Corpus petition that **ACS** agreed to resume Plaintiff Saenz's visits with her child. Plaintiffs allege here that the fact that the visits were reinstated simply because **ACS** said so, not because there was any finding that the mother had done nothing wrong, shows that the actions of the Family Court Judges is greatly affected by the direction in which **ACS** wishes to take the case.

132. That on or about March 4, 2011, the following recorded exchange took place between Defendant **WALKER** and Plaintiff Saenz:¹

JW: But they really have, I mean, it's no longer a thing that you was taking pictures, It's no longer a thing that you was endangering the baby. So now it's like what else do they have, what other reasons do they have to keep you from your baby.

SS: They don't have a reason. **They're just trying to justify 'cause you know how the agency want to win.**

JW: **I know. I know the agency. Right. I know that and, and I'm part of the agency and they order me to do certain things but even still, even with, even with my agency ordering me to say certain things but they can't make me tell a lie. To say some things to twist it this way. You got a good lawyer. So he could defeat us.**

JW: You know. Hi. Which was my original, uh, concern. I was, I was concerned about that. I was saying, well, how far is she gonna go. You know. **But now it's kinda, like, showing that you, you know you've been here, showing that you care for the baby, you know and, and you're not crazy and you ain't going to do nothing rash. So why they holding, why they still keeping your baby? You know.**

¹ JW = John Walker; SS = Shirley Saenz

SS: **They shouldn't keep the baby.** That's-
 JW: **No they shouldn't! They shouldn't.** So, I don't know. I don't know. So you go back to court March 14th?
 JW: Okay. We, **you thought sex abuse. I thought you was crazy until I saw it.**
 SS: **But now you know I'm not crazy.**
 JW: **Right. 'Cause I, I mean that's, I mean for the rash, a di- a diaper rash to be in almost a perfect circle like that around his anus looks like sex abuse.**
 SS: **That looks like sex abuse?**
 JW: **It, it, it looks like it.**

(emphasid added)

133. That at no times after Walker's March 4, 2011 revelation that "they shouldn't keep the baby" did ACS make efforts to then return the child to Plaintiff Saenz.
134. That at all times herein, Walker acted at the behest and with the consent and knowledge of Defendants Boyce, Degannes and Thomas.
135. That more recently ACS cancelled visitation claiming that the infant Plaintiff was suffering from asthma. The subject child had never suffered from asthma until the week when Plaintiff Saenz' visits were cancelled. It is believed visits were missed to cover-up the fact that the child continues to exhibit anal swelling.
136. That in furtherance of the conspiracy ACS has threatened persons who had information that would help the mother obtain custody of her child in Family Court.
137. That in furtherance of the conspiracy, ACS has or caused persons to suppress evidence or testimony that would be favorable to the Plaintiff mother in her efforts to obtain custody of her child in Family Court.
138. That Defendant ACS, by its agents named herein, engaged in a patter of failing to maintain contemporaneous "field notebooks" during the period in question.

139. That Defendant **ACS**, by its agents named herein destroyed, altered, doctored, improperly duplicated or otherwise concealed records related to this incident alleged herein.
140. That ACS has engaged in a pattern of using police assistance to remove children from their parents' custody, without a court warrant/order, although the custodial parent was already challenging custody in court.
141. That defendant ACS engaged in a pattern of action designed to cover-up their unlawful policies.
142. That said pattern of action is prohibited by **ACS**' own rules and regulations.
143. That as a direct and proximate cause of all defendants' actions, Plaintiffs suffered injuries.
144. That the false arrest of the plaintiff and plaintiff's wrongful imprisonment, because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.
145. That as a direct and proximate results of defendants' actions, Plaintiff Saenz and F.J.S-R suffered and continue to suffer, mental anguish, injury to reputation, psychological and emotional distress, some or all of which may be permanent.
146. That as a direct and proximate result of defendants' actions, Plaintiffs were deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and State of New York.
147. That Defendant **CITY**, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers, including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police, including defendants in this case, to engage in unlawful conduct.

148. That the actions of defendant, actin under color of State law, deprived Plaintiffs of their rights, privileges and immunities under the laws and Constitution of the United States, in particular, the rights to be secure in his person and property, to be free from the excessive use of force and from abuse of process and due process.
149. That by these actions, defendants have deprived the Plaintiffs of rights secured by the Fourth and Fourteenth amendments to the United States Constitution and laws of the City and State of New York.
150. That the defendant **ACS** and **CITY**, by their agent officers involved in this incident did not have good reason remove the child from Plaintiff Saenz's custody.
151. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained damages hereinbefore stated.
152. That on January 26, 2015 the neglect case against Plaintiff Saenz was dismissed after having been adjourned in contemplation of dismissal.
153. That by reason of the foregoing, Plaintiffs demand judgment for violation of their constitutional rights against all Defendants in the amount of seventeen million (\$17,000,000) dollars.

FIRST CAUSE OF ACTION: 42 U.S.C. §1983

154. Plaintiffs re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.
155. Upon information and belief, defendant **CITY** has a policy of removing and detaining children from custodial parents who, acting pursuant to Social Services Law §416, et, seq,

document instances of alleged abuse by photographic or other evidence, without due process of law, and based upon constitutionally inadequate investigations.

156. Upon information and belief, defendants **CITY** has a policy of removing and detaining children from custodial parents who are otherwise engaged in an ongoing custody proceeding in Family Court, by use of police assistance, without due process of law, and based upon constitutionally inadequate investigations.

157. By detaining and imprisoning the plaintiffs, without probable cause or reasonable suspicion, defendants deprived the plaintiffs of their rights, remedies, privileges and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth (unreasonable search and seizure), Ninth (custodial interference) and Fourteenth (due process) Amendments of the United States Constitution.

158. In addition, the defendant officers and ACS employees acted in concert c to deprive the plaintiff of her constitutional rights secured by 42 U.S.C. Section 1983, and by Fourth (unreasonable search and seizure), Ninth (custodial interference), and Fourteenth (due process), Amendments of the United States Constitution, and took numerous overt steps in furtherance of such conspiracy as set forth above.

159. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment by defendant **CITY and ACS**. Said acts by the Defendant Officers and ACS agents were beyond the scope of their jurisdiction, without authority of law and in abuse of their powers, and said Defendants acted willfully, knowingly and with the specific intent to deprive plaintiff Saenz and infant Plaintiff of their constitutional rights secured by 42 U.S.C. Section 1983 and by the Fourth (unreasonable

search and seizure), Ninth (custodial interference), and Fourteenth (due process) Amendments of the United States Constitution.

160. Acting pursuant to said policy, and without probable cause or due process of law, and based upon a constitutionally inadequate investigation, defendants removed or conspired to remove infant plaintiff from plaintiff Saenz.
161. Acting pursuant to said policy, and without probable cause or due process of law, and based on a constitutionally inadequate investigation, defendants detained the infant plaintiff in government custody and interfered with Plaintiff Saenz's custodial rights by instituting and maintaining the Family Court action against Plaintiff Saenz.
162. Said policy, and the removal and detention effectuated pursuant to said policy, constituted an unlawful interference with plaintiff's liberty interest in the care and custody of her children, the infant plaintiff herein, in violation of the First and Fourteenth Amendments to the United States Constitution. Said policy, and its implementation, were gross deviations from acceptable professional conduct.
163. Said policy and its implementation, constituted unlawful interference with infant plaintiffs' liberty interest in being cared for by his mother.
164. In the alternative, defendant **CITY** failed to adopt policies requiring their employees to remove children only if probable cause existed for such a removal and only if they provide due process of law to children and parents, and only if they had investigated to determine probable cause. Defendants' agents and employees acted to remove and detain the infant child without probable cause and without due process of law, in violation of Fourth (unreasonable search and seizure), Ninth (custodial interference), and Fourteenth (due process) Amendments of the United

States Constitution.

165. Defendants **CITY** knew or should have known that their failure to adopt a policy requiring their employees to afford parents and children due process of law in connection with the removal of the children would cause defendants' agents and employees to remove and detain children without due process of law, in violation of Fourth (unreasonable search and seizure) and Fourteenth (due process) Amendments of the United States Constitution.
166. Defendant **CITY** knew or should have known that their failure to adopt a policy regarding the removal of the children from their parents would cause defendants' agents and employees to violate children's and parents' rights to live together as a family without state intervention, contrary to the First (association), Fourth (unreasonable search and seizure), Sixth (right to counsel), Ninth (custodial interference), and Fourteenth (due process) Amendments of the United States Constitution.
167. Defendants policy, as alleged above, was also directed against Plaintiff for her religious affiliation.
168. Defendants further violated the civil rights of the plaintiffs by conspiring to cover up the nature and reason for the unlawful arrest, imprisonment, detention of plaintiffs and the unlawful commencement of the Family Court proceeding.
169. That Defendants' actions were not privileged and immune.
170. As a result of defendants' actions, plaintiff Saenz suffered the loss of the custody and services of her child, the infant suffered the loss of liberty and of the care and guidance of his mother, and all plaintiffs Saenz suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

SECOND CAUSE OF ACTION: 42 U.S.C. §1985

171. Plaintiffs re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.
172. Upon information and belief, defendant **CITY** has a policy of removing and detaining children from custodial parents who, acting pursuant to Social Services Law §416, et, seq, document instances of alleged abuse by photographic evidence, without due process of law, and based upon constitutionally inadequate investigations.
173. Upon information and belief, defendants **CITY has** a policy of removing and detaining children from custodial parents who are otherwise engaged in an ongoing custody proceeding in Family Court, by use of police assistance, without due process of law, and based upon constitutionally inadequate investigations.
174. Upon information and belief, defendants **CITY has** a policy of removing and detaining children from custodial parents who are members of religious groups that the City may find objectionable, by use of police assistance or otherwise, without due process of law, and based upon constitutionally inadequate investigations.
175. By detaining and imprisoning the plaintiffs, without probable cause or reasonable suspicion, defendants deprived the plaintiffs of their rights, remedies, privileges and immunities guaranteed to every citizen of the United States, in violation, but not limited to, rights guaranteed by the Fourth (unreasonable search and seizure), Ninth (custodial interference) and Fourteenth (due process) Amendments of the United States Constitution.
176. In addition, the defendant officers and ACS employees conspired to the persons of depriving

the plaintiff of her constitutional rights secured by the Fourth (unreasonable search and seizure), Ninth (custodial interference), and Fourteenth (due process) Amendments of the United States Constitution, and took numerous overt steps in furtherance of such conspiracy as set forth above.

177. That among the steps toward the conspiracy that ACs and Defendant officers took was in coordinating the detention of Plaintiff Saenz such that ACS would have physical custody of the minor-child for the purposes of paroling said child to his biological father.

178. The Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment by defendant **CITY and ACS**. Said acts by the Defendant Officers and ACS agents were beyond the scope of their jurisdiction, without authority of law and in abuse of their powers, and said Defendants acted willfully, knowingly and with the specific intent to deprive plaintiff Saenz and infant Plaintiff of their constitutional rights secured by 42 U.S.C. Section 1985(3) and by the Fourth (unreasonable search and seizure), Ninth (custodial interference), and Fourteenth (due process) Amendments of the United States Constitution.

179. That Plaintiff Saenz is a class of protected persons under 42 U.S.C. Section 1985(3) in that she is a mother seeking custody of her minor child by judicial process and is entitled to all the protection and due process accorded to her by law during that process.

180. That Plaintiff Saenz is a class of protected persons under 42 U.S.C. Section 1985(3) in that she is a member of a religious association deserving of equal protection and due process under the law.

181. That Defendant's action of depriving Plaintiffs of their rights and privileges was motivated by animus.

182. That Defendants' actions were not privileged and immune.

183. As a result of defendants' actions, plaintiff Saenz suffered the loss of the custody and services of her child, the infant suffered the loss of liberty and of the care and guidance of his mother, and all plaintiffs Saenz suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

THIRD CAUSE OF ACTION: 42 U.S.C. §1986

184. Plaintiffs re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.

185. Plaintiffs re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.

186. That at all times herein, Defendants knew of the ongoing conspiracy to deprive Plaintiffs of their rights and privileges as protected under the law.

187. That defendants each individually had a duty to prevent the ongoing conspiracy as said conspiracy was targeted at a person protected by law to exercise her right as a parent seeking custody of her child.

188. That defendants each individually had a duty to prevent the ongoing conspiracy as said conspiracy was targeted at a person protected by law for the free exercise of her religious belief.

189. That defendants failed to exercise their obligation to prevent the conspiracy as secured under 42 U.S.C. §1986.

190. That with reasonable diligence, Defendants could have prevented the conspiracy and the

resulting action therefrom.

191. That Plaintiff Saenz suffered the loss of the custody and services of her child, the infant suffered the loss of liberty and of the care and guidance of his mother, and all plaintiffs Saenz suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

FOURTH CAUSE OF ACTION: 42 U.S.C. §1988(b) and (c)

192. Plaintiffs re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.
193. That Defendants have engaged in conduct in violation of both 42 U.S.C. §1985 and 42 U.S.C. §1986.
194. That as a result of the aforementioned violations, Plaintiffs were injured thereby.
195. That Defendants are thereby liable to Plaintiffs for legal and expert fees pursuant to 42 U.S.C. §1988(b) and (c).

FIFTH CAUSE OF ACTION: NEGLIGENT TRAINING AND SUPERVISION

196. Plaintiffs re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.
197. That said incident and the injuries complained of herein were caused solely by the negligence, carelessness and recklessness Defendants **CITY** and **ACS**, through its agents, servants, employees, and defendants ACS workers, by the persistence of the aforementioned policy of removing children from custodial parents that are already challenging custody in Family Court.

198. Defendants **CITY**, **ACS** provided grossly inadequate and unprofessional training and supervision to their agents and employees, especially the defendant ACS supervisors, regarding:

a. investigating child abuse and/or neglect cases involving custodial parents who, as an exercise of Social Services Law §416 et. seq, document by photographic evidence, the nature of an alleged sexual abuse;

b. determining whether probable cause exists to remove or detain children of custodial parents who, as an exercise of Social Services Law §416 et. seq, document by photographic evidence, the nature of an alleged sexual abuse;

c. determining whether probable cause exists to remove or detain children, with the assistance of police officers, from custodial parents who are otherwise already engaged in an ongoing custody proceeding in family court;

d. determining whether probable cause exists to remove or detain children, with the assistance of police officers or otherwise, from custodial parents who are otherwise engaged in the free exercise of religion.

e. the provision of notice and an opportunity to be heard prior to, or immediately after, the removal of children;

f. the obtaining of arrest warrants in Family Court, especially where there is an already ongoing case, before a Family Court judge; and

g. the proper maintenance of field notebooks documenting ACS work

199. Defendants **CITY** and **ACS** knew or should have known that their employees were

improperly trained and supervised in said issues.

200. Defendants **CITY** and **ACS** knew or should have known that their employees would confront said issues in their work and that, without training, would make the wrong decisions on said issues.
201. The defendants **CITY** and **ACS**, through their agents, servants, employees and the defendants **ACS** workers/supervisors involved, were negligent, reckless and careless in the exercise of their powers against Plaintiffs.
202. The defendants, **CITY** and **ACS** were further negligent in failing to properly investigate the aforesaid unlawful paroling of the infant plaintiff, and failing to timely question those individual defendants involved.
203. By reason of their lack of training, defendants **WALKER, DUNBAR, BOYCE, LAWRENCE, DEGANNES, THOMAS, PANIAGUA, HUGEE, HENEY, ASAFU-ADJEL, FELICIANO** and **AVENT**, improperly removed or conspired to remove the infant plaintiff from the custody of plaintiff Saenz.
204. By reason of their lack of training, **defendants WALKER, DUNBAR, BOYCE, LAWRENCE, DEGANNES, THOMAS, PANIAGUA, HUGEE, HENEY, ASAFU-ADJEL, FELICIANO** and **AVENT** detained infant plaintiff from plaintiff Saenz without adequate notice to plaintiff, without adequate investigation and without probable cause and without due process of law.
205. By reason of their lack of training, defendants **WALKER, DUNBAR, BOYCE, LAWRENCE, DEGANNES, THOMAS, PANIAGUA, HUGEE, HENEY, ASAFU-ADJEL, FELICIANO** and **AVENT** commenced and continued a neglect action against Plaintiff Saenz

without good reason to do so.

206. As a result of the defendants' actions, plaintiff Saenz suffered the loss of freedom and of the custody and services of her child; the infant plaintiff suffered the loss of liberty and of the care and guidance of his mother; and plaintiffs Saenz and infant plaintiff suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

SIXTH CAUSE OF ACTION: UNLAWFUL SEARCH AND SEIZURE

207. Plaintiff re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.
208. That the seizure of Plaintiff F.J.S.R. was wrongful and done without probable cause to do so, especially in light of the doctor's report, immediately preceding the removal, that the child was to be returned to the parent.
209. That throughout this period, the Plaintiffs were unlawfully, wrongfully, and unjustifiably detained, deprived of their liberty, and imprisoned.
210. All of the foregoing occurred without any fault or provocation on the part of the Plaintiffs.
211. That all times herein, all the purported reasons for the detention and removal of the child were fabricated and that Defendants knew said facts were wholly fabricated.
212. That Defendant CITY and ACS, their officers, agents, servants, and employees were responsible for Plaintiff F.J.S.R.'s unlawful removal as employers of the Defendants, are responsible for their wrongdoing under the doctrine of **respondeat superior**.
213. That the act of unlawfully removing the minor child from the care of the mother was in violation of the 4th amendment of the US Constitution and Article 12 of the New York

Constitution that protects persons from unlawful search and seizure.

214. That the Defendants acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of the Plaintiffs' rights, privileges, welfare, and well-being and are guilty of egregious and gross misconduct toward Plaintiffs.

215. As a result of the defendants' actions, plaintiff suffered the loss of freedom and of the custody and services of her child; loss of her liberty; the infant plaintiff suffered the loss the care and guidance of his mother; Plaintiff Samuel suffered the loss of his liberty; and all plaintiffs suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

SEVENTH CAUSE OF ACTION: ABUSE OF PROCESS

216. Plaintiff re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.

217. That, as claimed above, as a product of the conspiracy Defendants ACS and its named employees instituted a neglect case against Plaintiff Saenz in family court.

218. That at all times herein alleged, Defendants had no basis for the neglect action which was ultimately dismissed.

219. That there was no justification for the neglect case.

220. That Defendants ACS and employees commenced the neglect action with the intent of harming Plaintiff and not for the purposes of prosecuting a legitimate action.

221. As a result of the defendants' actions, plaintiff suffered the loss of freedom and of the custody and services of her child; loss of her liberty; the infant plaintiff suffered the loss the care and guidance of his mother; Plaintiff Samuel suffered the loss of his liberty; and all plaintiffs

suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

EIGHTH CAUSE OF ACTION: SUBSTANTIVE DUE PROCESS

222. Plaintiff re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.
223. That at all times herein, both ACS was fully aware of Plaintiff Saenz' claim that Plaintiff F.J.S.R. may have been a victim of abuse.
224. That at all times herein, ACS and its employees were aware that Plaintiff Saenz was documenting the alleged abuse by photographic evidence of same.
225. That Defendants ACS and its employees were likewise taking photographs of the minor child at the same time that the Plaintiff mother was taking photos.
226. That at all times herein, Plaintiff's action are protected by the NY's Social Services Law.
227. That Plaintiff when complained to ACS workers that the child's pediatrician thought the child may have been a victim of abuse, Defendant ACS workers refused to investigate further.
228. That when Dr. Hasan, the child's pediatrician filed a report of the possible abuse with the State Central Registry (hereinafter "SCR"), ACS agents threatened him into withdrawing his complaint.
229. That at any time when Plaintiff mother would complain about possible sexual abuse, Defendant ACS employees refused to investigate and threatened to take away the minor child if the mother insisted on possible abuse.
230. That instead of seeking the proper processes for legal removal of the child, if the child was thought by ACS employees to truly be in danger, the CITY, ACS and its named employees

conspired, as alleged herein, to extra-judiciously removed the child from his mother's care.

231. That the Plaintiff mother is entitled to equal protection of the law as a mother exercising her right to investigate and complain of any perceived abuse to her child.

232. That ACS employees, rather than protect the mother's rights instead violated her substantive due process rights by unlawfully removing said minor child from her care and protection. Said substantive due process rights are protected by the 14th Amendment of the US Constitution and by Article 11 of the Constitution of the State of New York.

233. That Defendant CITY and ACS, their officers, agents, servants, and employees were responsible for Plaintiff F.J.S.R's unlawful removal as employers of the Defendants, are responsible for their wrongdoing under the doctrine of **respondeat superior**.

234. That as a result of the defendants' actions, plaintiff suffered the loss of freedom and of the custody and services of her child; loss of her liberty; the infant plaintiff suffered the loss the care and guidance of his mother; Plaintiff Samuel suffered the loss of his liberty; and all plaintiffs suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

NINTH CAUSE OF ACTION: IIED

235. Plaintiff re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.

236. The Defendant **AVENT** engaged in extreme and outrageous conduct intentionally and recklessly causing severe emotional distress to plaintiff Saenz.

237. Plaintiff Saenz's emotional distress has damaged her personal and professional life because of the severe mental pain and anguish which were inflicted through deliberate and malicious

actions of Defendant who submitted a false statement that she knew will result in the loss of Plaintiff Saenz's visitations with her son.

238. That the effects of AVENT's action continued to be suffered throughout the course of the neglect case.

239. Defendant **CITY, and ACS**, their officers, agents servants, and employees were responsible for the intentional infliction of emotional distress suffered by the Plaintiff at the hands of the Defendant **AVENT**. Defendant **CITY** as employer of is responsible for her wrongdoing under the doctrine of **respondeat superior**.

240. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore stated.

241. That by reason of the foregoing, Plaintiff demands judgment for intentional infliction of emotional distress against Defendants **CITY, ACS** and **AVENT** in a sum to be determined at trial.

TENTH CAUSE OF ACTION: NEGLIGENCE

242. Plaintiff re-alleges, reiterates and repeats each and every allegation contained in the above paragraphs with the same force and effect as if more fully and at length set forth in each of the subsequent causes of action.

243. That defendants owed a duty of care to act toward Plaintiffs Saenz and with the highest degree of care to infant Plaintiff.

244. That Defendants' removal of infant Plaintiff from his mother's care under the facts alleged herein and the prosecution of the family court case constituted gross breaches of said duty from accepted professional standards.

245. That the negligence was the proximate cause of the damages suffered by Plaintiffs.

246. As a result of the defendants' actions, plaintiff suffered the loss of freedom and of the custody and services of her child; the infant plaintiff suffered the loss the care and guidance of his mother; and all plaintiffs suffered extreme humiliation, pain and suffering, terror, mental anguish, and depression.

DEMAND FOR TRIAL BY JURY

247. Pursuant to CPLR 4102, Plaintiff demands a trial by jury.

PRAYER FOR RELIEF

WHEREFORE, the plaintiff respectfully request judgment against the Defendants as follows:

A. On the First Cause of Action, for a declaratory judgment declaring the policy/and/or practices of removing children from the custodial parents based on the fact that the custodial parent is documenting instances of alleged abuse as unconstitutional, declaring the policy/and/or practices of using police assistance to remove children from the custody of their parents without a Family Court warrant as unconstitutional; enjoining defendants from removing children from the custodial parent where the charge against the custodial parent is the exercise of Social Services Law §§ 415 and 416; enjoining defendants from the use of police assistance in removing children from the custodial parent without a Family Court warrant or order to do so; enjoining defendants from the use of police assistance or otherwise in removing children from the custodial parent who are in the free exercise of their religious right that defendants may find objectionable; ordering defendants to provide training to their agents and employees the claims raised in the first cause of action; awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive

damages;

B. On the Second Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive damages;

C. On the Third Cause of Action, awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive damages;

D. On the Fourth Cause of Action awarding attorneys and expert fees;

E. On the Fifth Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury;

F. On the Sixth Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive damages;

G. On the Seventh Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive damages;

H. On the Eighth Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive damages;

I. On the Ninth Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury; and for punitive damages;

J. On the Tenth Cause of Action awarding compensatory damages to plaintiffs in an amount to be determined by the jury;

K. Granting such other and further relief as this Court may deem necessary in the interest of justice.

Dated: Brooklyn, New York
June 23, 2016

Yours, etc.,



Davis Ndanusa Ikhlas & Saleem LLP
Mustapha Ndanusa (MN-0687)

26 Court Street, Suite 603
Brooklyn, New York 11242
(718) 825-7719
mndanusa@gmail.com

VERIFICATION

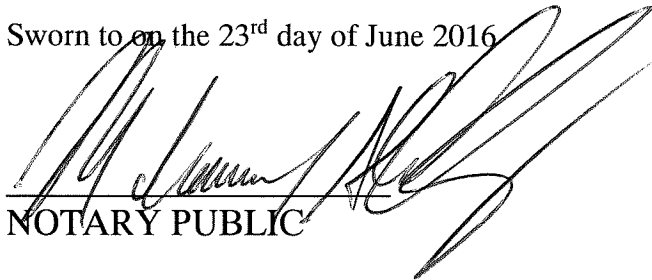
STATE OF NEW YORK)
)ss.:
COUNTY OF KINGS)

SHIRLEY SAENZ, being duly sworn hereby swears subject to the penalty of perjury the following:

1. That I am the Plaintiff in this proceeding.
2. That I have read the forgoing Verified Amended Complaint in this action and know the contents to be true based on my own personal knowledge.
3. That as to those matters alleged to be based on information and belief, I believe them to be true.


SHIRLEY SAENZ

Sworn to on the 23rd day of June 2016


NOTARY PUBLIC

MOHAMMAD AKIF SALEEM
NOTARY PUBLIC, State of New York
No. 02SA6324017
Qualified in Richmond County
Commission Expires May 28, 2019

**CIVIL COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index #506455/2016

SHIRLEY SAENZ, et al

Plaintiff,

-against-

CITY OF NEW YORK, et al

Defendants.

SUPPLEMENTAL SUMMONS AND VERIFIED AMENDED COMPLAINT

DAVIS, NDANUSA, IKHLAS & SALEEM LLP.

Attorneys for Plaintiff
26 Court Street, Suite 603
Brooklyn, New York 11242
(718) 825-7719

Pursuant to Article 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: June 23, 2016

Signature: 

Print Signer's Name: MUSTAPHA NDANUSA, Esq.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for _____

Please take notice

NOTICE OF ENTRY

that the within is a (certified) true copy of a
, 19 .

duly entered in the Office of the Clerk of the within court on

NOTICE OF SETTLEMENT

that an order

of which the within is true copy will be prepared for settlement to the Hon.

one of the judges of the within named court, at

on

, 19 at M.

Dated,

Yours, etc.

MUSTAPHA NDANUSA, ESQ.

Attorney for Plaintiffs

26 Court Street, Suite 603

Brooklyn, New York 11242

(718) 825-7719

To: